

Court No. - 38

Case :- WRIT - C No. - 32523 of 2018

Petitioner :- Mohammad Islam Rana And Another

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Anil Kumar Mishra

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble Abhinava Upadhyay,J.

Hon'ble Rajiv Gupta,J.

On the request made by Shri Abhijeet Saxena, holding brief of Shri A.K. Saxena, learned counsel for respondent nos.2 and 3, put up on 27.9.2018 as fresh case.

Order Date :- 25.9.2018

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(Rajiv Gupta,J.) (Abhinava Upadhyay,J.)

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Kumar Saxena

Hon'ble Abhinava Upadhya,J.

Hon'ble Rajiv Gupta,J.

Heard Sri Anil Kumar Mishra, learned counsel for the petitioners and Sri Awadhesh Kumar Saxena, learned counsel for the respondents no. 2 & 3.

On the allegation of electricity theft a Citation is said to have been issued on 04.04.2018 for a sum of Rs. 70,175/-.

Sri Awadhesh Kumar Saxena, learned counsel for the respondents no. 2 & 3 submits that once a Citation has been issued, it means that the provisional assessment and final assessment must have been completed.

Learned counsel for the petitioners however, submits that he was never served upon any notice of provisional assessment and procedure as provided under the Electricity Act and the Electricity Supply Code, has not been followed. The said provision 6.8 (c) provides for personal hearing which was never given to the petitioners.

Learned counsel for the petitioners submits that the petitioners have already filed objection to the Executive Engineer, which has remained pending

and has not been decided.

The writ petition is **disposed of** with the direction that in case, the petitioners make a representation before the Executive Engineer within one week, the Executive Engineer will then consider the claim of the petitioners and pass appropriate orders within a further period of one month.

For a period of one month, no coercive action shall be taken against the petitioners pursuant to the Recovery Citation dated 04.04.2018.

Order Date :- 27.9.2018

Arun Gangwar

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(Rajiv Gupta,J.) (Abhinava Upadhya,J.)